

THE PUNJAB FINANCE ORDINANCE, 1970
(XXI of 1970)

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TEXT

**¹THE ²[PUNJAB FINANCE ORDINANCE], 1970
(XXI of 1970)**

[30th June, 1970]

**An
Ordinance**

to continue and levy certain taxes, cesses and surcharges in the new Province of the Punjab.

Preamble.— WHEREAS it is expedient to continue and levy certain taxes, cesses and surcharges in the new Province of the Punjab;

NOW, THEREFORE, in pursuance of the Martial Law Proclamation of 25th March, 1969, read with the Provisional Constitution Order, the Province of West Pakistan (Dissolution) Order, 1970 and in exercise of all powers enabling him in that behalf, the Governor of West Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, commencement and extent.— (1) This Ordinance may be called the ³[Punjab Finance Ordinance], 1970.

(2) It shall come into force on and from the first day of July, 1970.

(3) It shall extend to the whole of the new Province of the Punjab comprising the territories specified in respect of this Province in the Schedule appended to the Province of West Pakistan (Dissolution) Order, 1970.

2. Surcharge on Agricultural Income tax in certain Districts.— (1) There shall be levied and collected from every owner of land which is assessed to agricultural income-tax in the Districts of Campbellpur⁴, Dera Ghazi Khan, Gujranwala, Gujrat, Jhelum, Jhang, Lahore, Lyallpur⁵, Mianwali, Multan, Muzaffargarh, Rawalpindi, Sahiwal, Sargodha, Sheikhpura, and Sialkot, on the land-revenue payable in the agricultural year 1969-70, an additional amount of agricultural income-tax by way of surcharge at the rate specified in the First Schedule.

¹This Ordinance was promulgated by the Governor of West Pakistan on 30th June, 1970; published in the West Pakistan Gazette (Extraordinary), dated 30th June, 1970, pages 1597-1601; saved by Article 281 of the Interim Constitution of the Islamic Republic of Pakistan (1972); and, validated by the Validation of Laws Act, 1975 (LXIII of 1975).

²Substituted for the words "West Pakistan (Punjab) Finance Ordinance" by the Punjab Laws (Adaptation) Order, 1974 (P.O. No. 1 of 1974), w.e.f. 14.8.1973, Article 2 and the Schedule; and published in the Punjab Gazette (Extraordinary), dated 20.11.1974, pages 1425-A to 1425-PP.

³Substituted for the words "West Pakistan (Punjab) Finance Ordinance" by the Punjab Laws (Adaptation) Order, 1974 (P.O. No. 1 of 1974), w.e.f. 14.8.1973, Article 2 and the Schedule; and published in the Punjab Gazette (Extraordinary), dated 20.11.1974, pages 1425-A to 1425-PP.

⁴Now "Attock".

⁵Now "Faisalabad".

Explanation— For purposes of this section “agricultural year” means the agricultural year as defined in the ⁶[Punjab] Land Revenue Act, 1967⁷.

(2) The provisions of the Punjab Agricultural Income-Tax Act, 1951⁸, shall, so far as may be, apply to the assessment, collection and recovery of the surcharge imposed under this section.

3. Cinema Tax.— (1) There shall be levied and collected a tax on cinemas payable by the owner or management thereof at the following rates for the financial year 1970-71:—

- (i) In the case of a cinema classed as a first class cinema. One thousand rupees.
- (ii) In the case of a cinema classed as a second class cinema. Five hundred rupees.
- (iii) In the case of a cinema classed as a third class cinema. One hundred rupees.

(2) If the person responsible for the payment of the tax under sub-section (1) fails to pay the tax within the period prescribed under the rules for its payment, he shall be liable to pay, in addition to the amount of such tax, a penalty not exceeding the amount of the tax payable.

4. Surcharge on Motor Vehicle Tax.— There shall be levied and collected in any area on which a tax is imposed on motor vehicles by or under any enactment in force, a surcharge on such tax, payable by the person by whom the tax is payable at the following rates for the financial year 1970-71:—

- (i) Motor vehicles used for the transport or carriage of goods and materials. Twenty-five rupees.
- (ii) Motor vehicles plying for hire and licensed to carry more than eight persons. Fifty rupees.

5. Tax on railway fares and freights.— Until the 30th day of June, 1971, there shall be levied and paid on railway fares and freights a tax according to the scale set out in the Second Schedule.

6. Application of existing laws.— Where any tax, cess or surcharge imposed by the Ordinance is by way of an addition to, or a surcharge on any existing tax imposed by or under any enactment in force, the procedure provided in such enactment and the rules framed thereunder for the assessment, collection and recovery of such tax, shall, so far as applicable, apply to the assessment, collection and recovery of the additional tax, cess or surcharge.

⁶Substituted for the words “West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (P.O. No. 1 of 1974), w.e.f. 14.8.1973, Article 2 and the Schedule; and published in the Punjab Gazette (Extraordinary), dated 20.11.1974, pages 1425-A to 1425-PP.

⁷W.P. Act XVII of 1967.

⁸Punjab Act XVI of 1951.

7. Bar of suits in Civil Courts.— No suit shall lie in any civil court to set aside or modify any assessment, levy or collection of a tax, duty, cess or surcharge made under this Ordinance and the rules thereunder or any penalty imposed under subsection (2) of section 3.

8. Power to make rules.— (1) The Provincial Government may make rules for carrying into effect the purposes of this Ordinance and such rules may, among other matters, prescribe the procedure for the assessment, collection and payment of any tax or cess levied or the imposition of any penalty under this Ordinance, in so far as such procedure is not provided in this Ordinance.

(2) Any rules made or deemed to have been made under the corresponding provisions of the ⁹[Punjab Finance Ordinance], 1969 (W.P. Ordinance VII of 1969), shall, so far as may be, be continued and be deemed to have been made under this Ordinance.

⁹Substituted for the words “West Pakistan Finance Ordinance” by the Punjab Laws (Adaptation) Order, 1974 (P.O. No. 1 of 1974), w.e.f. 14.8.1973, Article 2 and the Schedule; and published in the Punjab Gazette (Extraordinary), dated 20.11.1974, pages 1425-A to 1425-PP.

FIRST SCHEDULE

(See SECTION 2)

	<i>Surcharge</i>
Where the total land-revenue payable does not exceed Rs.349.	Nil.
Where the total land-revenue payable exceeds Rs.349 but does not exceed Rs.499.	Rupees twelve.
Where the total land-revenue payable exceeds Rs.499 but does not exceed Rs.749.	Rupees twenty-four
Where the total land-revenue payable exceeds Rs.749 but does not exceed Rs.999.	Rupees fifty.
Where the total land-revenue payable exceeds Rs.999 but does not exceed Rs.1,999.	Rupees one hundred.
Where the total land-revenue payable exceeds Rs.1,999 but does not exceed Rs.4,999.	Rupees two hundred and fifty.
Where the total land-revenue payable exceeds Rs.4,999 but does not exceed Rs.9,999.	Rupees five hundred.
Where the total land-revenue payable exceeds Rs.9,999.	Rupees one thousand.

SECOND SCHEDULE

(See SECTION 5)

Tax on Railway Fares and Freights

PART I

<i>Freight (Goods)</i>	<i>Tax</i>
Where the freight on any consignment does not exceed Rs.3.	Nil.
Where the freight on any consignment exceeds Rs.3 but does not exceed Rs.10.	Six paisa.
Where the freight on any consignment exceeds Rs.10 but does not exceed Rs.25.	Twelve paisa.
Where the freight on any consignment exceeds Rs.25 but does not exceed Rs. 50.	Twenty-five paisa.
Where the freight on any consignment exceeds Rs.50 but does not exceed Rs. 75.	Fifty paisa.
Where the freight on any consignment exceeds Rs.75 but does not exceed Rs. 100.	One rupee.
Where the freight on any consignment exceeds Rs.100 but does not exceed Rs. 150.	Two rupees.

Where the freight on any consignment exceeds Rs.150 but does not exceed Rs. 225. Three rupees.

Where the freight on any consignment exceeds Rs.225 but does not exceed Rs. 300. Four rupees.

Where the freight on any consignment exceeds Rs.300. Four rupees *plus* one rupee for every hundred rupees in excess of ¹⁰[three] hundred rupees of freight.

PART II
Fares (Passengers)

	<i>Amount of tax</i>
On a First Class ticket	50 paisa.
On a Second Class ticket	25 paisa.
On an Inter Class ticket	12 paisa.
On a Third Class ticket	6 paisa.

Provided that no tax shall be levied where the fare does not exceed Rs.3.

¹⁰Misprinted in the Gazette as "there".